

Case

Title / Nature of Case

2:00 PM

LINE: 1

23-CIV-01255

BREANNE HERNANDEZ, ET AL VS. RECOLOGY, INC., ET AL

**BREANNE HERNANDEZ
MIGUEL ALVAREZ**

**GARY A. DORDICK
P. CHRISTIAN SCHELEY**

PLAINTIFF BREANNE HERNANDEZ'S PETITION TO APPROVE MINOR'S COMPROMISE OF DISPUTED CLAIM

TENTATIVE RULING:

For the reasons stated below, the petition is **CONTINUED** to August 27, 2026, at 2:00 p.m. in Department 2. The Court does not find the proposed compromise unfair on the present record, but because the claimant is a minor and the guardian ad litem is also a substantial recipient of the global settlement, the Court requires a supplemental declaration addressing: (1) the minor's current medical, orthopedic, neurological, psychological, and educational condition; (2) the factual basis for the allocation of the global settlement among the adult plaintiffs and the minor; (3) the reasonableness of the requested attorney's fee and costs as applied specifically to the minor's claim; (4) final lien/reimbursement documentation; and (5) confirmation that the net proceeds will be deposited into a court-blocked insured account subject to withdrawal only by further court order.

Plaintiff shall file the supplemental declaration and all supporting papers no later than August 5, 2026.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the Plaintiff shall prepare a written order consistent with this ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide notice of the ruling to all parties as required by law. The Court further directs the parties' attention to revised Local Rule 3.403(b)(iv) (eff. Jan. 1, 2024) regarding the form of proposed orders.

2:00 PM

LINE: 2

25-CIV-00538

**MC HVAC, INC., A CALIFORNIA CORPORATION VS. MODERN TIMES CUSTOM BUILDERS INC.,
A CALIFORNIA CORPORATION;**

MC HVAC, INC., A CALIFORNIA CORPORATION

MODERN TIMES CUSTOM BUILDERS INC., A CALIFORNIA CORPORATION;

MARY ANN ROUSSO

PATRICK J. WHITEHORN

PLAINTIFF'S MOTION TO BE RELIEVED AS COUNSEL OF RECORD

TENTATIVE RULING:

The unopposed motion of Mary Ann Rousso to be relieved as counsel of record for plaintiff MC HVAC, Inc. is granted. Pursuant to CRC 3.1362(e), the order does not become effective until proof of service of a copy of the signed order on the client has been filed with the court.